

		The court will interlineate Paragraph 7 of the orders with the next hearing date: 06/29/26 at 9:00 a.m. in Department N14 - Motions to Be Relieved as Counsel of Record. The court will interlineate Paragraph 8 of the orders with the following additional hearing: 08/24/26 at 9:00 a.m. in Department N14 – Motion for Continuance of Trial. The court will interlineate Paragraph 9 of the orders with the correct trial date: 08/10/2026 at 8:30 a.m. in Department N14. The motions are GRANTED and will be effective in the filing of proof of service of the court’s signed order on the clients. Moving Attorney to give notice.
107	Ramirez vs. Toyota Motor Sales U.S.A, Inc., 2024 01449865	MOTION FOR ATTORNEY FEES – GRANTED IN PART Plaintiffs Mario Bautista Ramirez and Adriana Ramirez Silma (“Plaintiffs”) move for attorney fees and costs in the total amount of \$23,424.50: \$14,101.50 in attorney fees, a lodestar multiplier of 1.5 in the amount of \$7,050.75, and \$2,272.25 in costs and expenses. Defendant Toyota Motor Sales U.S.A., Inc. (“Defendant”) contends the attorney fees requested should be reduced, and a lodestar multiplier should not be applied. Defendant does not seek to strike or tax any of the costs sought by Plaintiffs. The Song-Beverly Consumer Warranty Act provides remedies for consumers that have purchased new vehicles. Remedies include the right to recover “damages and other legal and equitable relief.” (Civ. Code, § 1794, subd. (a).) “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of

costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

“A prevailing buyer has the burden of showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158; see also Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34-35; Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.)

“Determining a reasonable attorney fee award in Song-Beverly Act cases ordinarily begins with the ‘lodestar,’ [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1157; Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 [“To determine a reasonable attorney fee award, the trial court applies the lodestar method.”].) “The lodestar may ‘then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.’” (Id.)

“The Song-Beverly Act’s attorney fee provision requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158 [internal quotations omitted].) “These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited, and the results achieved.” (Ibid.; see also Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34, as modified (Oct. 11, 2019); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691.) “If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into

account and award attorney fees in a lesser amount.” (Ibid.; see also *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 36, as modified (Oct. 11, 2019); *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.)

“The reasonable hourly rate is that prevailing in the community for similar work.” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) “The relevant “community” is generally based on where the services are rendered, i.e., where the court is located.” (Ibid.) “Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County.” (Ibid.)

In considering whether to apply a multiplier (positive or negative) the court should consider the following and other relevant circumstances: complexity of the case, procedural demands, delay by the opposing party, and litigation tactics used by the opposing party. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.)

Notably, “it is inappropriate and an abuse of a trial court’s discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff’s damages or recovery in a Song-Beverly Act action.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35, as modified (Oct. 11, 2019).)

Here, the parties agreed in their Settlement Agreement that Plaintiffs are the prevailing party for purposes of attorney fees and costs. The Court finds that Plaintiffs have carried their burden to establish that the attorney fees sought are reasonable except as to the lodestar enhancement. The Court finds that (1) the circumstances of this case were not so complex or procedurally demanding such that a lodestar enhancement is appropriate, (2) Defendant did not delay the case or use litigation tactics that would justify the application of an enhancement/multiplier, and (3) the entries flagged as inappropriate in Defendant’s opposition are reasonable fees and billing entries under the circumstances of this case and the Court declines to subtract those fees and billing entries.

		Given the above, the motion for attorney fees, costs and expenses is GRANTED in the amount of \$16,373.75. Plaintiff to give notice.
108	Robicheaux vs. Rowshan, 2022-01261647	MOTION TO QUASH TRIAL SUBPOENA - CONTINUED
109	Security National Insurance Company v. O.C. Services Inc., 2020-01164470	MOTION FOR ENTRY OF JUDGMENT - CONTINUED Plaintiff, Security National Insurance Company (“Plaintiff”), moves for entry of judgment in favor of Plaintiff, Security National Insurance Company, against Defendants, O. C. Services Inc. aka OC Services Inc. and dba Molly Maid of Newport, and S & C Inc. aka S and C Inc. and dba Molly Maid of Long Beach (collectively, “Defendants”), in the total amount of \$432,914.42, inclusive of prejudgment interest plus the principal sums plus costs of suit and attorney’s fees, pursuant to Code of Civil Procedure section 664.6. Plaintiff contends that this action was settled by way of a written settlement agreement, but that Defendants have defaulted and that the Court should enter judgment in accordance with the terms of the settlement agreement pursuant to Code of Civil Procedure section 664.6. No opposition has been filed. “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc. §664.6(a).)